

An Act

ENROLLED SENATE
BILL NO. 1163

By: Hall and Haste of the
Senate

and

Caldwell (Trey), Kane, and
Waldron of the House

An Act relating to the Department of Human Services; making an appropriation; stating purpose; requiring that certain funds be utilized for certain purpose; requiring certain funding be maintained at certain levels; requiring certain joint approval prior to certain actions; requiring certain transfers to certain funds; appropriating certain federal funds for certain program; authorizing early allocation of funds under certain conditions; authorizing certain transfers; requiring the maintenance of certain records; providing budgeting and expenditure limitations and procedures; requiring and prohibiting certain budget procedures; providing an effective date; and declaring an emergency.

SUBJECT: Department of Human Services

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. There is hereby appropriated to the Department of Human Services from any monies not otherwise appropriated from the General Revenue Fund of the State Treasury for the fiscal year ending June 30, 2027, the sum of Two Hundred Seventy-two Thousand Dollars (\$272,000.00) or so much thereof as may be necessary to carry out the provisions of Enrolled Senate Bill No. 1847 of the 2nd Session of the 60th Oklahoma Legislature.

SECTION 2. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Seven Million Seven Hundred Twenty-nine Thousand One Hundred Ninety-seven Dollars (\$7,729,197.00) shall be used to replace funding no longer available due to the reduction of federal matching dollars.

SECTION 3. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the Department shall maintain the funding levels for senior nutrition programs from the fiscal year ending June 30, 2026. The Oklahoma Legislature requires joint approval from the President Pro Tempore of the Oklahoma State Senate and the Speaker of the Oklahoma House of Representatives before any senior nutrition sites may be closed due to declining attendance or increased operational costs during the fiscal year ending June 30, 2027.

SECTION 4. In addition to the funding required in Section 3 of this act, from the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Two Million Five Hundred Thousand Dollars (\$2,500,000.00) shall be used to maintain the permanent second meal per day for the ADvantage Waiver Program.

SECTION 5. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Five Million Dollars (\$5,000,000.00) shall be used to carry out the provisions of Enrolled Senate Bill No. 1806 of the 2nd Session of the 60th Oklahoma Legislature.

SECTION 6. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Two Hundred Fifty Thousand Dollars (\$250,000.00) shall be used to carry out the provisions of Enrolled Senate Bill No. 1377 of the 2nd Session of the 60th Oklahoma Legislature.

SECTION 7. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Four Million Five

Hundred Sixty Thousand Dollars (\$4,560,000.00) shall be used to carry out the provisions of Enrolled House Bill No. 2778 of the 1st Session of the 60th Oklahoma Legislature.

SECTION 8. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Twenty-five Million Five Hundred Seventy-five Thousand Dollars (\$25,575,000.00) shall be used to provide additional state funding for the administration of the Supplemental Nutrition Assistance Program.

SECTION 9. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the Department is authorized to transfer the sum of Three Million Dollars (\$3,000,000.00) to the 2-1-1 Hotline Revolving Fund, created in Enrolled Senate Bill No. 1290 of the 2nd Session of the 60th Oklahoma Legislature.

SECTION 10. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Thirty-eight Million Nine Hundred Ninety-three Thousand Seven Hundred Sixty-one Dollars (\$38,993,761.00) shall be used to provide additional state funding for the ADvantage waivers.

SECTION 11. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the Department shall maintain the funding levels for provider rates and service authorizations for the Community, Homeward Bound, In-Home Supports for Adults, In-Home Supports for Children, and ADvantage waivers from the fiscal year ending June 30, 2026.

SECTION 12. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature for the support of the Developmental Disability Services Division, in addition to services provided in the fiscal year ending June 30, 2026, the agency may also budget for and expend funds for family and self-advocate onboarding meetings and services, professional development for case management and providers, expansion of crisis services, and enhancements to intake processes for the purpose of ensuring a

stronger, more responsive service delivery system for Oklahomans with developmental disabilities.

SECTION 13. From the funds authorized to be transferred to the Developmental Disability Services Revolving Fund in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, no funds may be expended for administrative services, targeted case management, Medicaid match for any ICF/IID services or other non-Medicaid match services not described in Section 11 of this act.

SECTION 14. From the funds appropriated to the Department of Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the Department of Human Services shall transfer Five Million Six Hundred Thousand Dollars (\$5,600,000.00) to the credit of the Child Abuse Multidisciplinary Account established in Section 1-9-103 of Title 10A of the Oklahoma Statutes, which shall be distributed according to Section 1-9-104 of Title 10A of the Oklahoma Statutes.

SECTION 15. There is hereby appropriated to the Department of Human Services all federal monies received by the state during the fiscal year ending June 30, 2027, from the Temporary Assistance for Needy Families Block Grant and the Child Care and Development Block Grant to meet the provisions of federal law relating to such grants.

SECTION 16. The Director of Human Services may request through the Director of the Office of Management and Enterprise Services the early transfer by the Oklahoma Tax Commission of tax collections to the General Revenue Fund for the purpose of early allocation to the Department of Human Services disbursing funds to alleviate cash flow problems.

SECTION 17. A. The Director of the Office of Management and Enterprise Services shall transfer monies appropriated from the General Revenue Fund to the Department of Human Services disbursing funds in the amounts and ratios requested by the agency except that the cumulative amount transferred shall not exceed the cumulative amount of equal monthly allotments of the appropriations from the General Revenue Fund.

B. Monies appropriated or collected for the fiscal year ending June 30, 2027, may be transferred to these disbursing funds for the

fiscal year ending June 30, 2026, to satisfy encumbrances and obligations of the fiscal year, provided that monies equal in amount are transferred from appropriations or collections for the fiscal year ending June 30, 2026, to the disbursing funds for the fiscal year ending June 30, 2027, to satisfy encumbrances and obligations of the fiscal year. All transfer requests shall be in writing to the Director of the Office of Management and Enterprise Services.

C. The Department of Human Services shall maintain records of such inter-year transfers.

SECTION 18. The Director of Human Services may request the Director of the Office of Management and Enterprise Services to transfer monies between the Department of Human Services Support Service Providers Grant Program Fund and the Human Services Disbursing Fund or the Human Services Medical and Assistance Fund, as needed for the expenditure of funds.

SECTION 19. This act shall become effective July 1, 2026.

SECTION 20. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of April, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 16th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____